

Devpal v. State of U.P. — liberty to object under para 6.8

High Court of Judicature at Allahabad · Division Bench · 20 May 2022 · WRIT - C No. - 4446 of 2022 · **Writ disposed with liberty to object under para 6.8; coercive action stayed eight weeks.**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of a writ challenging UPPCL assessment orders by granting liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided within the next four weeks after hearing. Coercive action on the impugned demand was stayed for eight weeks or until disposal of the objection, whichever earlier.

FACTUAL SUMMARY

Devpal filed a writ in the Allahabad High Court to quash assessment orders dated 31 August 2020 and 27 November 2020 issued by the Executive Engineer, U.P. Power Corporation Ltd., Electricity Distribution Block, Babrala, and for a mandamus directing that officer to consider an objection to the provisional assessment and pass a fresh final assessment, with compensation. Counsel for the distribution corporation stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment as alternate remedy

HOLDING

A writ challenging assessment or demand orders may be disposed of without examining merits by granting liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after hearing, with a short stay of coercive recovery pending that disposal. ¶ 4-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against the assessment orders was disposed without merits, with liberty to object under para 6.8. ¶ 4

fresh-objection-under-clause-6.8 Petitioner given four weeks to submit a para 6.8 objection before the Executive Engineer. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ASSESSMENT ORDERS DATED 31.08.2020 AND 27.11.2020

Court expressly declined to opine on merits. ¶ 4

NOT DECIDED — COMPENSATION CLAIMED FOR THE WRIT

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